Customs and Excise (Shoe Manufacturer) (Suspension) Regulations, 2025

ARRANGEMENT OF SECTIONS

Section

1. Title.
2. Interpretation.
3. Completion and use of prescribed forms.
4. Grant of suspension.
5. Registration of manufacturers.
6. Storage of duty suspended goods.
7. Clearance of goods.
8. Manufacturer to keep stock-book.
9. Disposal of duty suspended goods.
10. Eligibility of goods for suspension.
11. Cancellation of registration.

FIRST SCHEDULE: Forms.
SECOND SCHEDULE: Goods eligible for suspension.
THIRD SCHEDULE: Approved shoe manufacturers.

IT is hereby notified that the Minister of Finance, Economic Development and Investment Promotion has, in terms of section 235, as read with section 120, of the Customs and Excise Act [*Chapter 23:02*], made the following regulations:—

Title

1. (1) These regulations may be cited as the Customs and Excise (Shoe Manufacturer) (Suspension) Regulations, 2025.

(2) These regulations shall come into effect from 1st January, 2026.

Interpretation

2. In these regulations—

DISTRIBUTED BY VERITAS
e-mail: veritas@mango.zw; website: www.veritaszim.net
Veritas makes every effort to ensure the provision of reliable information,
but cannot take legal responsibility for information supplied.

"applicant" means a manufacturer making an application for registration as a manufacturer of shoes in terms of these regulations;

"form" means the appropriate form referred to in the First Schedule;

"goods" means any materials referred to in the Second Schedule used in the manufacture of shoes;

"manufacturer" means any person who is registered as a manufacturer of shoes in terms of section 5.

Completion and use of prescribed forms

3. (1) All forms in terms of these regulations and copies thereof shall be completed indelibly and in a legible manner.

(2) A proper officer may refuse to accept any form if he or she considers that any part of it is illegible and that it has not been properly completed.

Grant of suspension

4. Subject to these regulations, a suspension of duty shall be granted on goods referred to in the Second Schedule, imported or taken out of bond by a manufacturer for use in the manufacture of shoes.

Registration of manufacturers

5. (1) Only approved manufacturers as listed under the Third Schedule shall be eligible to apply for the shoe manufacturers' suspension in terms of these regulations.

(2) Any person who wishes to claim a suspension of duty in terms of these regulations shall apply to the proper officer in the Form prescribed by the Commissioner for registration as a manufacturer.

(3) An application referred to in subsection (1) shall be supported by such additional information or documents as the Commissioner may require which shall be made before the importation or removal from bond of any goods intended for the manufacture of shoes.

(4) In order to be eligible for registration hereunder the applicant must be registered with the Zimbabwe Revenue Authority and have a valid tax clearance certificate.

(5) On receipt of an application in terms of this section the proper officer shall, before referring the application for consideration by the Commissioner, inspect the applicant's premises and machinery and report the findings to the Commissioner.

(6) If the Commissioner approves the application, he or she shall call on the applicant to—

(a) erect on his or her premises the stores provided for in section 6; and

(b) enter into a bond on a prescribed Form, with sufficient surety in an amount determined by the Commissioner, for the securing of duty and compliance with the requirements of these regulations; and

(c) pay the fee referred to in this section.

(7) When the applicant has complied with the requirements of this section, the Commissioner shall register the applicant and the fee for registration as a manufacturer shall be the prescribed amount.

(8) The fee for registration as a manufacturer shall be the amount prescribed in terms of section 173 of the Customs and Excise (General) Registration, 2001, published Statutory Instrument 154 of 2001:

Provided that where the registration of an applicant is approved after the 30th of June in any year, the fee payable in terms of this section shall be half of the fee referred to in this subsection.

(9) The prescribed fee for renewal of registration of a manufacturer shall be payable annually on or before the 31st January, every year.

(10) The Commissioner may reject an application for registration if he or she is of the opinion that—

(a) adequate control of goods imported or taken out of bond under suspension of duty is not likely to be maintained; or

(b) any provision of these regulations will not be complied with.

Storage of duty suspended goods

6. (1) The manufacturer shall provide on his or her premises secure stores for the safe storage of goods on which duty has been suspended and shall, at his or her own expense, provide the necessary fastenings so that the stores may be secured with Customs locks.

(2) No goods on which duty has been suspended may be stored elsewhere than in the stores provided for in subsection (1) of this section, and no such store shall, without the prior written permission of the Commissioner, be used for any other purposes.

Clearance of goods

7. (1) Goods to be entered under the suspension of duty provided for in these regulations shall be entered for consumption at the port of entry nearest to the premises of the manufacturer.

(2) A manufacturer shall, when effecting entry on importation or on removal from bond of goods intended for manufacture under suspension, submit with the relevant bill of entry, a declaration signed by him or her, to the effect that the goods are to be used solely in the manufacture of shoes.

Manufacturer to keep stock-book

8. (1) A manufacturer shall keep a stock-book, in a form approved by the Commissioner, showing full particulars of all receipts and disposals of goods entered for the manufacture of shoes in such a manner that the suspended goods can readily be accounted for to the satisfaction of the Commissioner.

(2) If a manufacturer fails to keep a stock-book in the manner approved in terms of subsection (1), any suspended goods received by the manufacturer during the period when the stock-book was not so kept shall be deemed to have been used for a purpose other than that for which the suspension was granted unless the manufacturer satisfies the Commissioner that the suspended goods were used for the purpose for which the suspension was granted.

(3) The stock-book and premises of a manufacturer shall be open for inspection by a proper officer at any time.

Disposal of duty suspended goods

9. (1) Subject to subsections (2) and (3) of this section, a manufacturer shall not, except with the written authority of the Commissioner, and on payment of the duty suspended, dispose of any suspension goods otherwise than in accordance with these regulations.

(2) The Commissioner may authorise the disposal of suspension goods on payment of such duty, not exceeding the amount of duty suspended, as he or she thinks fit, if in the opinion of the Commissioner, the goods cannot be economically used for the purpose for which they were entered under suspension.

(3) A manufacturer shall, when required by the Commissioner to do so, carry out under the supervision of an officer, at such times as the Commissioner may consider necessary, any manufacturing operation in which goods entered under suspension are used.

(4) Duty on suspension goods which are accidentally destroyed before being used in the manufacture of shoes may be remitted if the Commissioner is satisfied that every reasonable effort was made and precaution taken to prevent their destruction.

Eligibility of materials for suspension

10. Only the goods listed in the Second Schedule shall be eligible for suspension if imported or taken out of bond under the tariff heading indicated opposite thereto.

Cancellation of registration

11. (1) The Commissioner may cancel or suspend the registration of a manufacturer if such manufacturer—

(a) ceases to manufacture shoes; or

(b) fails to comply with or contravenes any of the provisions of these regulations; or

(c) fails to pay the fee for the renewal of registration in accordance with subsection (7) of section 5; or

(d) so requests.

(2) If any registration is cancelled in terms of subsection (1) of this section, any duty suspended shall immediately become due and payable.

Transparency and accountability in the utilisation of suspension facility

12. (1) A manufacturer shall be required to present to the Minister, an annual report in a form approved by the Minister, showing full particulars of all the benefits achieved in the utilisation of the suspension facility granted in terms of these regulations. The report shall be in such a manner that the effect on the following aspects on the manufacturer's business can be readily ascertained or accounted for to the satisfaction of the Minister—

(a) the incremental employment levels achieved by the manufacturer;

(b) capacity utilisation levels attained from the use of the suspension;

(c) value of new investment received since the implementation of the suspension;

(d) growth in the manufacturer's output; and

(e) research and development initiatives carried out by the manufacturer.

(2) If a manufacturer fails to produce the annual report in the manner approved in terms of subsection (1), the suspension shall be immediately withdrawn and any suspension goods received by the manufacturer during the period when the report was not so produced shall be deemed to have been used for a purpose other than that for which the suspension was granted. The manufacturer shall be required to pay the suspended revenue forthwith and the penalty for failure to keep records.

(3) The annual report by the manufacturer shall be submitted within thirty days from the end of the twelve months period calculated from—

(a) the 1st January, 2025 in the first year; and

(b) thereafter from the 1st of January every year subsequently.

FIRST SCHEDULE (*Section 2*)

FORMS

Form Titles
Application for registration
Shoe manufacturer's Bond

In terms of section 5(2) of the Interpretation Act [*Chapter 1:01*], the stated forms are not published in these regulations. They may be inspected free of charge at the offices of the Zimbabwe Revenue Authority, Harare, or at any of the offices of the Zimbabwe Revenue Authority in any Region.

SECOND SCHEDULE (*Section 10*)

GOODS ELIGIBLE FOR SUSPENSION

The goods listed below shall be imported or taken out of bond under suspension only by manufacturers registered in terms of section 5 and as listed in the Third Schedule.

Tariff Heading	Tariff Code	Description of goods
25.03	2503.00.00	Sulphur FG no.1 powder
28.01	2801.10.00	Chlorine
28.11	2811.22.00	Tokusil 255 G
28.17	2817.00.00	Zinc Oxide, PEG 400
29.12	2912.49.00	Novaltan PF
29.15	2915.70.00	Stearic Acid
29.27	2927.00.00	Cellcom
32.04	3204.13.90	Other coloring matter
32.10	3210.00.99	Other paints and varnishes
32.02	3202.10.00	Basyntan DLE
	3202.90.00	Intan TP 340, Chromosal B
32.04	3204.11.00	Solverderm Black
34.05	3405.10.00	Polishes, creams and similar preparations for footwear or leather
35.06	3506.91.00	Adhesives based on polymers of heading 39.01 to 39.13 or on rubber
	3506.99.00	Rheolate 212
38.06	3806.10.00	Gum Rosin
38.09	3809.93.00	Ingrassante H50

Tariff Heading	Tariff Code	Description of goods
	3809.10.00	Akral RF 915, SFT P5001
38.12	3812.10.00	Accelerator MBTS
38.17	3817.00.00	Mixed alkylbenzenes and mixed alkylnaphthalenes, other than those of heading 27.07 or 29.02.
39.04	3904.22.00	PVC Compound Black school shoe, PVC Compound black Julliana, PVC Compound brown Julliana, PVC Compound black Janet
39.09	3909.50.00	SP Akral PU18
39.26	3926.90.20	Shoe trims, boot and shoe lasts; transmission, conveyor and elevator belting
40.01	4001.10.00	Natural latex
	4001.29.00	Natural Rubber Skim Crepe, Natural rubber IX W/White, Natural rubber RSSI
40.02	4002.19.00	SBR 1205, Synthetic Rubber 1502
40.08	4008.21.00	Plates, sheets and strip
41.07	4107.99.00	Other leather further prepared after tanning or crusting
52.09	5209.42.00	Denim
56.03	5603.14.00	Non-woven, whether or not impregnated, coated, covered or laminated, of man-made filaments weighing more than 150 g/m^2
	5603.93.00	Non-woven, whether or not impregnated, coated, covered or laminated, of man-made filaments weighing more than 70 g/m^2 but not more than 150 g/m^2
5903	5903.20.00	Textile fabrics impregnated, coated, covered or laminated with polyurethane
	5903.90.00	Other textile fabrics impregnated, coated, covered or laminated
60.06	6006.22.00	Other dyed knitted or crocheted fabrics
	6006.90.00	Other knitted or crocheted fabrics
64.06	6406.90.00	Other parts of footwear

Tariff Heading	Tariff Code	Description of goods
76.07	7607.19.90	Other, aluminium foil
83.03	8308.90.00	Other, including parts
84.80	8480.20.00	Mould bases
	8480.79.00	Other moulds

THIRD SCHEDULE (*Section 5*)

APPROVED SHOE MANUFACTURERS

The manufacturers listed below are approved for importation under Shoe Manufacturers' Suspension only as registered in terms of section 5.

	Name of Approved Manufacturer
1.	Bata Shoe Company Limited
2.	Danrich Shoes (Private) Limited
3.	Eagle Italian Shoes (Private) Limited
4.	M & V Footwear (Private) Limited